

An Act

ENROLLED HOUSE
BILL NO. 3970

By: Caldwell (Trey) of the
House

and

Hall of the Senate

An Act relating to court reporters; amending 20 O.S. 2021, Sections 106.4, as amended by Section 1, Chapter 100, O.S.L. 2023, and 106.9, as last amended by Section 1, Chapter 263, O.S.L. 2023 (20 O.S. Supp. 2025, Sections 106.4 and 106.9), which relate to court reporter duties and salaries; expanding allowable means of court reporting; authorizing certain remote availability; providing requirements and authorizations for ordering transcripts; clarifying language; increasing certain annual salary; increasing number of certifications eligible for certain payments; modifying continuing education requirements; providing for suspension and ineligibility for payments under certain conditions; updating statutory language; amending 20 O.S. 2021, Section 1503, which relates to shorthand reporter examinations for certifications; modifying allowable methods of shorthand reporting; providing an effective date; and declaring an emergency.

SUBJECT: Court reporters

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 20 O.S. 2021, Section 106.4, as amended by Section 1, Chapter 100, O.S.L. 2023 (20 O.S. Supp. 2025, Section 106.4), is amended to read as follows:

Section 106.4. A. 1. The court reporter shall make a full reporting by means of ~~stenographic hand,~~ steno-mask or, stenographic machine notes, any other method of reporting authorized by the

Supreme Court, or a combination thereof, of all proceedings, including the statements of counsel and the court and the evidence, in trials and other judicial proceedings to which the court reporter is assigned by the appointing judge unless excused by the judge who is trying the case with the consent of the parties to the action. ~~Nothing herein contained shall be construed to authorize the certification of persons as certified shorthand reporters who rely exclusively upon the steno-mask for reporting judicial proceedings, except as provided by law.~~ A refusal of the court to permit or to require any statement to be taken down by the court reporter or transcribed after being taken down, upon the same being shown by affidavit or other direct and competent evidence, to the Supreme Court, or other appellate court, shall constitute a denial of due process of law. The court reporter may use an electronic instrument as a supplementary device.

2. In any trial, hearing or proceedings, if no court reporter is available to the assigned judge either remotely or in person:

- a. the judge before whom the matter is being heard may order the proceedings electronically recorded and a trial or proceedings may proceed without the necessity of a court reporter being present. ~~Provided that if an official transcript is ordered then it shall be prepared by the official court reporter~~ Any party may order a transcript, provided that for use in any subsequent trial, hearing, proceeding, or appeal, only official transcripts prepared by an official court reporter are permitted for any purpose, or
- b. with approval of the judge, the parties may stipulate to the use of a freelance reporter and share the cost. If ordered, the transcript shall be prepared by the approved reporter and shall be considered the official transcript for all purposes.

B. 1. Upon request of either party in a civil or criminal case, the reporter shall transcribe the proceedings in a trial or other judicial proceeding, or so much thereof as may be requested by the party, certify to the correctness of the transcript, and deliver the same in accordance with the rules of the Supreme Court. The fee for an original transcript shall be set by the Supreme Court. Two copies of the original transcript shall be furnished without additional charge. Each page shall be at least twenty-five lines to the page and typed no fewer than nine characters to the typed inch.

Each page shall be no more than double spaced and the margin on the left side of the page shall be no more than one and one-half (1 1/2) inches and the margin on the right side of the page shall be no more than one-half (1/2) inch from the edge of the paper. The format for all transcripts shall be prescribed by the Supreme Court. The fees for making the transcript shall be paid in the first instance by the party requesting the transcript and shall be taxed as costs in the suit.

2. When the judge on his or her own motion orders a transcript of the reporter's notes, the judge may direct the payment of charges and the taxation of the charges as costs in such manner as the court deems appropriate. In a criminal action, if the defendant shall present to the judge an affidavit that the defendant intends in good faith to take an appeal in the case and that a transcript of the reporter's notes is necessary to enable the defendant to prosecute the appeal, and that he or she has not the means to pay for the transcript, the court, upon finding that there is reasonable basis for the averment, shall order the transcript made at the expense of the district court fund. The format preparation, delivery, and filing of transcripts to be used in civil and criminal appeals may be regulated by the Supreme Court.

C. The court reporter shall file his or her records of the evidence and the proceedings taken in any case with the clerk of the court in which the case was tried.

D. To the extent that it does not substantially interfere with the court reporter's other official duties, the judge by whom a reporter is employed or to whom he or she is assigned may assign a reporter to secretarial or clerical duties arising out of official court operations.

SECTION 2. AMENDATORY 20 O.S. 2021, Section 106.9, as last amended by Section 1, Chapter 263, O.S.L. 2023 (20 O.S. Supp. 2025, Section 106.9), is amended to read as follows:

Section 106.9. A. Each court reporter regularly engaged by the district court, the Workers' Compensation Court of Existing Claims, or the Corporation Commission shall be paid a salary pursuant to the salary schedule established by the annual appropriation for the district courts and Corporation Commission and in accordance with the job description for the position to which appointed. For fiscal year 2023 and each fiscal year thereafter, each court reporter shall

receive an annual salary of ~~Fifty-three Thousand Dollars~~
~~(\$53,000.00)~~ Sixty-five Thousand Dollars (\$65,000.00).

B. In addition to their base salaries, official court reporters who are certified or licensed shorthand reporters and those acting shorthand reporters pursuant to paragraph 3 of Section 106.3B of this title shall be paid annually the sum of Four Hundred Dollars (\$400.00) for each year of service to the district court, the Workers' Compensation Court, the Workers' Compensation Court of Existing Claims and the Corporation Commission, with a maximum of twenty (20) years of service only to be used for the purpose of longevity, not to exceed Eight Thousand Dollars (\$8,000.00) per year, payable monthly. For the purpose of payment for longevity, "years of service" is defined as all years served as a certified or licensed court reporter in the district court, the Workers' Compensation Court, the Workers' Compensation Court of Existing Claims and the Corporation Commission after June 30, 1978. Longevity payments shall be made on July 1 of each year following completion of the first year of service as defined herein.

C. In addition to their base salaries, official court reporters eligible for longevity payments pursuant to subsection B of this section shall be paid an annual equipment allowance of Three Thousand Dollars (\$3,000.00). Payments for such allowance shall be made on July 1 of each year following completion of the first year of service as defined in subsection B of this section.

D. In addition to their base salaries, official court reporters who are certified shorthand reporters shall be paid the following:

1. The sum of Two Thousand Dollars (\$2,000.00) per year, payable monthly, to any official court reporter who ~~is~~ holds one or more of the following certifications:

a. a Registered Professional Reporter (RPR), as recognized by the ~~State Board of Examiners of Certified Shorthand Reporters. To qualify as a RPR, an official court reporter shall have~~ National Court Reporters Association (NCRA),

b. a Certified Verbatim Reporter (CVR), as recognized by the National Verbatim Reporters Association (NVRA),

- c. a Certified Verbatim Reporter - Stenotype (CVR-S), as recognized by the National Verbatim Reporters Association (NVRA), or
- d. other certifications authorized by the Supreme Court that demonstrate a proficiency level in reporting testimony and proceedings of a speed of not less than two hundred twenty-five (225) words per minute in taking a question-and-answer-type dictation, two hundred (200) words per minute in taking a jury charge, and one hundred eighty (180) words per minute in taking literary material. In addition, the individual shall pass a the Oklahoma Written Knowledge Test with a score of at least seventy percent (70%), ~~all as determined by an examination recognized by the Board,~~ and shall complete thirty (30) hours of continuing education per three-year cycle commencing at the date of recognition as directed by the Supreme Court;

2. The sum of Two Thousand Dollars (\$2,000.00) per year, payable monthly, to any official court reporter who ~~is~~ holds one or more of the following certifications:

- a. a Registered Merit Reporter (RMR), as recognized by the State Board of Examiners of Certified Shorthand Reporters. ~~To qualify as a RMR, an official court reporter shall have~~ National Court Reporters Association (NCRA),
- b. a Certificate of Merit (CM) or Certificate of Merit - Stenotype (CM-S), as recognized by the National Verbatim Reporters Association (NVRA), or
- c. other certifications authorized by the Supreme Court that demonstrate a proficiency level in reporting testimony and proceedings of a speed of not less than two hundred sixty (260) words per minute in taking a question-and-answer-type dictation, two hundred forty (240) words per minute in taking a jury charge, and two hundred (200) words per minute in taking literary material. In addition, the individual shall pass a the Oklahoma Written Knowledge Test with a score of at least seventy percent (70%), ~~all as determined by an examination recognized by the Board,~~ and shall

complete ~~thirty (30) hours of~~ continuing education ~~per three-year cycle commencing at the date of recognition~~ as directed by the Supreme Court;

3. The sum of Two Thousand Dollars (\$2,000.00) per year, payable monthly, to any official court reporter who ~~is~~ holds a certification as a Registered Diplomat Diplomat Reporter (RDR), as recognized by the State Board of Examiners of Certified Shorthand Reporters, and who completes thirty (30) hours of continuing education per three-year cycle commencing at the date of recognition National Court Reporters Association (NCRA);

4. The sum of Two Thousand Dollars (\$2,000.00) per year, payable monthly, to any official court reporter who ~~is~~ holds one or more of the following certifications:

a. a Certified Realtime Reporter (CRR), as recognized by the State Board of Examiners of Certified Shorthand Reporters, and who completes thirty (30) hours of continuing education per three-year cycle commencing at the date of recognition; National Court Reporters Association (NCRA), or

b. a Realtime Verbatim Reporter - Master (RVR-M) or Realtime Verbatim Reporter - Master - Stenotype (RVR-M-S), as recognized by the National Verbatim Reporters Association (NVRA);

5. Any official court reporter who is the holder of more than one certification shall be compensated in the additional amounts specified in paragraphs 1 through 4 of this subsection for each certification up to a maximum of Eight Thousand Dollars (\$8,000.00) per year over and above the reporter's base salary, payable monthly; and

6. In the event of a lapse in a court reporter's certification, compensation for certification that is greater than his or her salary shall be suspended until the certification is renewed or reinstated. Compensation shall not be due to a court reporter for any period during which his or her certification is not in good standing.

E. Court reporters temporarily employed by the district court, Workers' Compensation Court of Existing Claims, or Corporation Commission shall be compensated by the court fund of the court which

they serve at a rate to be set by such court. In addition, court reporters temporarily employed pursuant to this subsection who are required by the terms of their employment to travel outside their county of residence shall receive reimbursement for mileage actually and necessarily traveled to and from the place of attendance at a rate not to exceed the rate of reimbursement specified in the State Travel Reimbursement Act for state employees. Any travel reimbursement shall be paid from the court fund of the court where the service of the temporarily employed court reporter is provided.

SECTION 3. AMENDATORY 20 O.S. 2021, Section 1503, is amended to read as follows:

Section 1503. A. Every applicant who seeks to be examined for enrollment as a certified shorthand reporter shall prove to the satisfaction of the State Board of Examiners of Certified Shorthand Reporters that he or she:

1. Is of legal age;
2. Meets the requisite standards of ethical fitness; and
3. Has at least a high school education or its equivalent.

B. The examination for certification in one or more authorized methods of shorthand reporting consists of two parts, designated Part 1 and Part 2 as follows:

1. Part 1 consists of the test as authorized by the Supreme Court consisting of the following requirements: demonstrated proficiency in reporting testimony and proceedings at a speed of not more than two hundred (200) words per minute in taking a question-and-answer type dictation and at a speed of not more than one hundred eighty (180) words per minute in taking literary materials which shall be designed to test the ability of an applicant to accurately prepare a transcript of testimony and proceedings that is reasonably free from spelling errors. The Board may not increase or decrease such minimum speed requirement, by rule or otherwise; and

2. Part 2 is the Oklahoma Written Knowledge test which consists of not less than twenty-five multiple choice questions relating to Oklahoma law and court rules, duties of certified shorthand reporters, and general court procedure. The examination shall be approved by the Supreme Court. A person who has tested with the Board and successfully completed the written knowledge portion of

the examination shall be allowed to retain the credit for that portion for two (2) years from the date passed, and shall not be required to retake that portion during the two-year period.

C. An applicant who is academically dishonest when taking any authorized examination is disqualified and may not take the examination again until two (2) years have elapsed from the date of the examination at which the applicant was disqualified.

D. A certification issued under this section must be for one or more of the following methods of shorthand reporting:

1. ~~Written shorthand;~~

~~2. Machine shorthand; or~~

2. Steno-mask shorthand; or

3. Any other method of shorthand reporting authorized by the Supreme Court.

E. No person may engage in shorthand reporting in this state unless the person is a licensed or certified shorthand reporter or otherwise authorized by law or the Supreme Court.

SECTION 4. This act shall become effective July 1, 2026.

SECTION 5. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 27th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____